

COURT OF COMMON PLEAS OF PHILADELPHIA COUNTY

DOCKET



Docket Number: CP-51-CR-0000702-2024

CRIMINAL DOCKET

Court Case

Commonwealth of Pennsylvania

v.

Robert Burkett

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CASE INFORMATION

<u>Judge Assigned:</u> Parkinson, Michael	<u>Date Filed:</u> 02/01/2024	<u>Initiation Date:</u> 02/01/2024
<u>OTN:</u> U 294114-2	<u>LOTN:</u>	<u>Originating Docket No:</u> MC-51-CR-0022973-2023
<u>Initial Issuing Authority:</u> Karen Y. Simmons	<u>Final Issuing Authority:</u>	
<u>Arresting Agency:</u> Philadelphia Pd	<u>Arresting Officer:</u> Kahlán, Ronald L.	
<u>Complaint/Citation No.:</u> 2308032085-0022973	<u>Incident Number:</u> 2308032085	
<u>County:</u> Philadelphia	<u>Township:</u> Philadelphia City	
<u>Case Local Number Type(s)</u>	<u>Case Local Number(s)</u>	
Originating Docket Number	MC-51-CR-0022973-2023	
District Control Number	2308032085	
Originating Document Number	2308032085-0022973	

STATUS INFORMATION

<u>Case Status:</u> Active	<u>Status Date</u>	<u>Processing Status</u>	<u>Arrest Date:</u> 12/29/2023
	07/11/2025	Awaiting Trial Readiness Conference	
	06/24/2025	Awaiting Trial Readiness Conference	
	06/17/2025	Awaiting Scheduling Conference	
	05/13/2025	Awaiting Trial Readiness Conference	
	08/16/2024	Awaiting Trial Readiness Conference	
	07/30/2024	Awaiting Scheduling Conference	
	02/14/2024	Awaiting Pre-Trial Conference	
	02/01/2024	Awaiting Filing of Information	
			<u>Complaint Date:</u> 12/29/2023

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CALENDAR EVENTS

<u>Case Calendar</u>	<u>Schedule</u>	<u>Start</u>	<u>Room</u>	<u>Judge Name</u>	<u>Schedule</u>
<u>Event Type</u>	<u>Start Date</u>	<u>Time</u>			<u>Status</u>
Formal Arraignment	02/14/2024	11:00 am	1104	Trial Commissioner Gerald Winterstein	Scheduled
Pre-Trial Conference	03/12/2024	9:00 am	905	Judge Zachary C. Shaffer	Scheduled
Pretrial Bring Back	04/23/2024	9:00 am	905	Judge Zachary C. Shaffer	Continued
Pretrial Bring Back	06/18/2024	9:00 am	905	Judge Zachary C. Shaffer	Continued
Pretrial Bring Back	07/30/2024	9:00 am	905	Judge Zachary C. Shaffer	Scheduled
Scheduling Conference	08/16/2024	9:00 am	808	Judge Nicholas Kamau	Scheduled
Trial Readiness Conference	01/24/2025	9:00 am	808	Judge Nicholas Kamau	Continued
Jury Trial	02/04/2025	9:00 am	808	Judge Nicholas Kamau	Continued
Trial Readiness Conference	05/13/2025	9:00 am	808	Judge Nicholas Kamau	Continued
Jury Trial	05/20/2025	9:00 am	808	Judge Nicholas Kamau	Continued
Scheduling Conference	07/11/2025	9:00 am	808	Judge Nicholas Kamau	Scheduled
Trial Readiness Conference	08/07/2025	9:00 am	808	Judge Nicholas Kamau	Continued
Trial Readiness Conference	08/14/2025	9:00 am	808	Judge Nicholas Kamau	Continued
Jury Trial	08/19/2025	9:00 am	808	Judge Nicholas Kamau	Cancelled
Jury Trial	08/19/2025	9:00 am	808	Judge Nicholas Kamau	Continued
Trial Readiness Conference	10/30/2025	9:00 am	808	Judge Nicholas Kamau	Scheduled
Jury Trial	11/18/2025	9:00 am	808	Judge Nicholas Kamau	Continued
Jury Trial	12/04/2025	9:00 am	808	Judge Nicholas Kamau	Scheduled
MHC-Competence Determination Bail	01/22/2026	9:00 am	902	Judge Donna Woelpper	Scheduled
Bench Warrant Hearing	01/23/2026	10:30 am	403	Judge Michael Parkinson	Scheduled
MHC-Competence Determination Bail	02/05/2026	9:00 am	902	Judge Donna Woelpper	Continued
MHC-Competence Determination Bail	03/12/2026	9:00 am	902	Judge Donna Woelpper	Continued
MHC-Competence Determination Bail	04/02/2026	9:00 am	902	Judge Donna Woelpper	Continued

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CALENDAR EVENTS

Case Calendar	Schedule	Start	Room	Judge Name	Schedule
Event Type	Start Date	Time			Status
MHC-Competence Determination Bail	05/07/2026	9:00 am	902	Judge Donna Woelpper	Continued
MHC-Competence Determination Bail	06/11/2026	9:00 am	902	Judge Donna Woelpper	Scheduled

DEFENDANT INFORMATION

Date Of Birth: 11/08/1988 City/State/Zip: Philadelphia, PA 19116

CASE PARTICIPANTS

Participant Type	Name
Defendant	Burkett, Robert

BAIL INFORMATION

Burkett, Robert

Nebbia Status: None

Bail Action	Date	Bail Type	Originating Court	Percentage	Amount
Set	12/29/2023	Monetary	Municipal Court	10.00%	\$200,000.00
Set (bail modification)	12/30/2023	Monetary	Municipal Court		\$200,000.00
Set	02/01/2024	Monetary	Common Pleas		\$200,000.00
Surety Type	Surety Name	Posting Status	Posting Date	Security Type	Security Amt
Third Party	Philadelphia Bail Bonds	Modified	12/30/2023	Surety Bonds	\$200,000.00
Third Party	Philadelphia Bail Bonds	Posted	02/01/2024	Surety Bonds	\$200,000.00

CHARGES

Seq.	Orig Seq.	Grade	Statute	Statute Description	Offense Dt.	OTN
1	1		18 § 3121	Rape Forcible Compulsion	09/14/2023	U 294114-2
2	2		18 § 3123	IDS1 Forcible Compulsion	09/14/2023	U 294114-2
3	3		18 § 3124.1	Sexual Assault	09/14/2023	U 294114-2
4	5		18 § 3124.2	Caretaker--Sexual Intercourse/Contact with Care-Dependent Person	09/14/2023	U 294114-2
5	6		18 § 3126	Indecent Assault Forcible Compulsion	09/14/2023	U 294114-2

DISPOSITION SENTENCING/PENALTIES

Disposition

Case Event	Disposition Date	Final Disposition
Sequence/Description	Offense Disposition	Grade Section
Sentencing Judge	Sentence Date	Credit For Time Served
Sentence/Diversion Program Type	Incarceration/Diversionary Period	Start Date
Sentence Conditions		

Lower Court Proceeding (generic)

Preliminary Hearing	01/31/2024	Not Final
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DISPOSITION SENTENCING/PENALTIES

Disposition

<u>Case Event</u>	<u>Disposition Date</u>	<u>Final Disposition</u>
<u>Sequence/Description</u>	<u>Offense Disposition</u>	<u>Grade</u> <u>Section</u>
<u>Sentencing Judge</u>	<u>Sentence Date</u>	<u>Credit For Time Served</u>
<u>Sentence/Diversion Program Type</u>	<u>Incarceration/Diversionary Period</u>	<u>Start Date</u>
<u>Sentence Conditions</u>		
1 / Rape Forcible Compulsion	Held for Court	18 § 3121
2 / IDSI Forcible Compulsion	Held for Court	18 § 3123
3 / Sexual Assault	Held for Court	18 § 3124.1
4 / Caretaker--Sexual Intercourse/Contact with Care-Dependent Person	Held for Court	18 § 3124.2
5 / Indecent Assault Forcible Compulsion	Held for Court	18 § 3126

Proceed to Court Defendant Was Not Present

Information Filed	02/07/2024	Not Final
1 / Rape Forcible Compulsion	Proceed to Court	18 § 3121
2 / IDSI Forcible Compulsion	Proceed to Court	18 § 3123
3 / Sexual Assault	Proceed to Court	18 § 3124.1
4 / Caretaker--Sexual Intercourse/Contact with Care-Dependent Person	Proceed to Court	18 § 3124.2
5 / Indecent Assault Forcible Compulsion	Proceed to Court	18 § 3126

COMMONWEALTH INFORMATION

Name:

Supreme Court No:

ATTORNEY INFORMATION

Name: Richard John Fuschino Jr.
Private

Supreme Court No: 206094

Rep. Status: Active

Phone Number(s):
215-515-8600 (Phone)

Address:
1600 Locust St
Philadelphia, PA 19103-6305

Representing: Burkett, Robert

ENTRIES

<u>Sequence Number</u>	<u>CP Filed Date</u>	<u>Document Date</u>	<u>Filed By</u>
1	02/01/2024		Court of Common Pleas - Philadelphia County
Held for Court			

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3	02/01/2024		Simmons, Karen Y.
Bail Set - Burkett, Robert			
4	02/01/2024		Philadelphia Bail Bonds
Bail Posted - Burkett, Robert			
1	02/07/2024		Krasner, Larry
Information Filed			
3	02/14/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
3	03/12/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
4	03/12/2024		Shaffer, Zachary C.
Defense Request For Continuance For Further Investigation			
4	04/23/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
5	04/23/2024		Shaffer, Zachary C.
Defense Request For Continuance For Further Investigation			
4	06/18/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
5	06/18/2024		Shaffer, Zachary C.
Defense Request For Continuance For Further Investigation			
4	07/30/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	07/31/2024		Shaffer, Zachary C.
Pre-Trial Conference Held			

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3	08/16/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
6	08/16/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
7	08/16/2024		Kamau, Nicholas
Scheduling Conference Held			
1	01/24/2025		Kamau, Nicholas
Defense Request For Continuance For Further Investigation			
5	01/24/2025		Court of Common Pleas - Philadelphia County Kamau, Nicholas
Short Certificate CP Attorney Attachments 01/24/2025			
6	01/24/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
10	01/24/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
11	01/24/2025		Court of Common Pleas - Philadelphia County
Counsel Attached for Trial			
12	01/24/2025		Kamau, Nicholas
Defense Request For Continuance Attorney Unavailable			
4	05/13/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			

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8	05/13/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
9	05/13/2025		Kamau, Nicholas
Defense Request For Continuance For Further Investigation			
10	05/13/2025		Court of Common Pleas - Philadelphia County Kamau, Nicholas
Short Certificate CP Attorney Attachments 05/13/2025			
11	05/13/2025		Court of Common Pleas - Philadelphia County
Counsel Attached for Trial			
4	05/15/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
3	06/17/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
4	06/24/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	07/11/2025		Kamau, Nicholas
Order Granting Motion for Continuance			
5	07/11/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
9	07/11/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			

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4	10/30/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
5	10/30/2025		Kamau, Nicholas
Defense Request For Continuance For Status of Mental Health			
2	12/04/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
3	12/04/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
4	12/04/2025		Kamau, Nicholas
Defense Request For Continuance For Status of Mental Health			
3	01/23/2026		Court of Common Pleas - Philadelphia County
Hearing Notice			
5	01/23/2026		Court of Common Pleas - Philadelphia County
Hearing Notice			
3	02/05/2026		Court of Common Pleas - Philadelphia County
Hearing Notice			
4	02/05/2026		Woelpper, Donna
Status Listing			
3	03/12/2026		Court of Common Pleas - Philadelphia County
Hearing Notice			
4	03/12/2026		DeFino-Nastasi, Rose
Status Listing			

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<u>Sequence Number</u>	<u>CP Filed Date</u>	<u>Document Date</u>	<u>Filed By</u>
3	04/02/2026		Court of Common Pleas - Philadelphia County
Hearing Notice			
4	04/02/2026		Woelpper, Donna
Status Listing			
3	05/07/2026		Court of Common Pleas - Philadelphia County
Hearing Notice			
4	05/07/2026		Woelpper, Donna
Status Listing			

CASE FINANCIAL INFORMATION

Last Payment Date:

Total of Last Payment:

Burkett, Robert	<u>Assessment</u>	<u>Payments</u>	<u>Adjustments</u>	<u>Non Monetary</u>	<u>Balance</u>
Defendant				<u>Payments</u>	
Costs/Fees					
Bail Bond (Philadelphia)	\$10.00	\$0.00	(\$10.00)	\$0.00	\$0.00
Costs/Fees Totals:	\$10.00	\$0.00	(\$10.00)	\$0.00	\$0.00
Grand Totals:	\$10.00	\$0.00	(\$10.00)	\$0.00	\$0.00

** - Indicates assessment is subrogated